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File No.: EXP202402580

RESOLUTION OF

PROCEEDING OF WARNING

From the proceeding initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On December 20, 2023, a complaint was filed with the Spanish Agency for Data Protection for a possible infringement attributable to A.A.A. with NIF ***NIF.1, hereinafter referred to as the respondent as the owner of ***ESTABLECIMIENTO.1.

The basis of the complaint is that a video has been published on the Instagram profile ***ESTABLECIMIENTO.1, in which the complainant appears within the aforementioned establishment, without having given their consent for that "public exposure."

Along with the written complaint, the following is provided:

- The URL where the video was hosted: ***URL.1

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), this complaint was forwarded to the owner of the establishment for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The notification of the transfer of the complaint, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was made on February 26, 2024, as noted in the acknowledgment of receipt in the file.

On March 18, 2024, this Agency received a written response from someone claiming to be the daughter of the owner and manager of the establishment, attaching:

- A copy of the first page of a complaint filed with the National Police dated March 10, 2024.
- Images showing the range of the cameras inside the establishment, which by their angles allow for the determination, without any doubt, that the video was captured by the security cameras of the establishment.

THIRD: On March 20, 2024, in accordance with Article 65 of the LOPDGDD, the complaint was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, pursuant to the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VIII of the LOPDGDD.

As a result of the actions taken, the following points were noted:

1.- On February 8, 2024, this Agency obtained the following evidence:

- A screenshot of the INSTAGRAM platform at the reported URL showing a frame from a video and the date December 18, 2023. It also shows the profile name "****ESTABLECIMIENTO.1" and the text "What sadness, impotence, lack of respect, and anger that they do not value the work. THESE YOUNG REGULARS AT OUR STORE ARE ALREADY CUSTOMERS, the first because after coming from a party they would come to buy something to eat. BUT WHAT HAS BEEN OUR SURPRISE THAT THEY BOUGHT 1 and STOLE 5. YES SIRRS, WE HAVE REALIZED THIS and they have been doing this for a long time, because we have monitored our cameras. [...] Disappointing that some young people steal from you and all laugh and take it as something NORMAL. THERE IS NO EMPATHY towards anyone, the RESPECT for work these young people DO NOT KNOW. FOR A CHOCOLATE BAR AND SOME PASTRIES THEY [...]"

- A complete video where the dates December 15, 2023, and December 18, 2023, are noted within the video itself, showing different individuals who appear to be stealing goods from the establishment.

2.- On October 7, 2024, it was verified that:

- At the URL ***URL.1 there is no content, and on the same INSTAGRAM profile of “***ESTABLECIMIENTO.1” the reported video is no longer present.

- On the Google Maps service, at ***DIRECCIÓN.1, there is a bakery named “***ESTABLECIMIENTO.1.”

3.- On October 23, 2024, it was verified on www.axesor.es that:

- A.A.A. is registered as self-employed and has an address at ***DIRECCIÓN.1. Additionally, it has the CNAE code describing “retail trade of bread [...]”

FIFTH: On December 13, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate a warning procedure against the respondent for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

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SIXTH: The notification of the aforementioned initiation agreement, which was carried out in accordance with the rules established in the LPACAP, was received on 19/12/2024 as evidenced by the acknowledgment of receipt in the file.

SEVENTH: On 02/01/2025, a written statement of allegations was received from the responding party, which, in summary, includes the following considerations:

- That it provides a copy of the conviction ruling dated October 1, 2024, from the Court of Instruction No. XX of Madrid, which condemns the respondents as responsible authors of a minor crime against property, specifically continued theft as provided and punished in Article 234.2 of the Penal Code.

- That it acknowledges the publication of the video on Instagram at the time, although “it was not done with malice towards them, just so they realize and do not do it again... we wake up early to work and to discover that a group we serve with the best of intentions is stealing right in front of us and laughing as if it were nothing, fills us with rage and helplessness...”

In view of all the actions taken, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

FIRST: That in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since the responding party, through its surveillance system, collects images of those individuals who access its business.

The responding party carries out this activity in its capacity as the data controller, as it is the one who determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

SECOND: That the images in which it could be verified how these “customers” stole various products inside the business were published by the responding party on the social network INSTAGRAM; this publication has been acknowledged by the same.

It should be noted that the facts subject to publication concerning the responding party have been declared proven by a conviction ruling from Court No. XX of Madrid, dated 01/10/2024, (the video is included in the case file):

“ONLY.- That between December 15 and 18, 2023, B.B.B., C.C.C., D.D.D., E.E.E., and F.F.F., regular customers of the establishment ***ESTABLECIMIENTO.1, located at ***DIRECCIÓN.1, when approaching the counter to buy empanada, took advantage of the distraction of G.G.G. to take products that were in the display installed there, consisting of candies, pastries, and similar items, leaving the place without paying for them, with a total value of €34.80.”

LEGAL GROUNDS

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I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, and 64.3 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

II

Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Considering the nature of the facts that have led to the actions and the concurrent circumstances, the present warning procedure is being followed in accordance with the provisions of Article 64.3 of the LOPDGDD.

The procedure shall have a maximum duration of six months from the date of the initiation agreement. After this period, it will expire, and consequently, the actions will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

III

Preliminary Issues

The GDPR aims to guarantee the right to the protection of personal data of individuals. Article 4.1 of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2 of the GDPR defines "processing" as "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction;"

Article 4.7 of the GDPR defines "data controller" or "controller" as: the natural or legal person, public authority, agency, or other body that, alone or jointly with others, determines the purposes and means of the processing; if the law of the Union or of the Member States determines the purposes and means of processing, the controller shall be the person or body that determines them.

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treatment or the specific criteria for its appointment may be established by Union law or the law of the Member States;"

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, the processing of personal data is evident: on one hand, the video recording of customers or potential customers within the establishment, since the image is a personal data, and, on the other hand, the publication of the captured images on social media. The physical image of a person is personal data and its protection is therefore the subject of this Regulation.

The owner of the establishment carries out this activity in his capacity as the data controller, as he determines the purposes and means of such activity, by virtue of Article 4.7 of the GDPR.

IV

Response to allegations

The respondent has acknowledged the fact of having published on the social network INSTAGRAM the images from the surveillance camera of his establishment. However, it is necessary to highlight

that the fact that the “customers” were committing a crime does not imply the possibility of violating the right to data protection, as there is no legal basis for it. The video could have been submitted, as was done, in the Criminal Jurisdiction and/or to the State Security Forces and Corps.

The intended deterrent effect alleged by the respondent cannot serve as justification.

V

Unfulfilled obligation. Lawfulness of processing

The first paragraph of Article 6 of the GDPR states the following:

“1. Processing shall be lawful only if at least one of the following applies:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) the processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks.”

Furthermore, Recital 40 of the GDPR states that “For processing to be lawful, personal data must be processed with the consent of the data subject or on another legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation relates, including the necessity of complying with a legal obligation to which the controller is subject or the necessity of performing a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract.”

In the present case, the images captured by the surveillance cameras inside the establishment were subsequently published on its Instagram profile. The capturing of images is a processing of personal data that would have a specific legal basis and purpose, which are not extendable to the subsequent processing carried out in this case: the publication of such images on a social network.

Therefore, for the publication of the videos to be lawful, it would be necessary for it to have been carried out on one of the legal bases provided for in Article 6.1 of the GDPR.

The four claimants who entered the establishment and whose images were captured state that they did not give their consent for such images to be published on the ***ESTABLISHMENT's Instagram profile. In the case being analyzed, none of the other legitimizing circumstances provided for in the aforementioned article are observed. Therefore, the processing would not be lawful due to the lack of consent or any other legal basis.

Consequently, it is considered that the known facts constitute an infringement, attributable to A.A.A. for violation of the previously transcribed article, all without prejudice to the fact that, prior to the opening of this warning procedure, the video subject to the complaint is not present on the social network of the respondent, where it was published, having been removed, at least, by October 7, 2024.

VI

Classification of the infringement of Article 6.1 of the GDPR and qualification for the purposes of limitation

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

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"a) the basic principles for processing, including the conditions for consent in accordance with Articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its Article 71, Offenses, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute offenses."

For the sole purpose of the statute of limitations, Article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious offenses and will be subject to a three-year statute of limitations: those that involve a substantial violation of the articles mentioned therein and, in particular, the following:

a) The processing of personal data in violation of the principles and guarantees established in Article 5 of Regulation (EU) 2016/679."

VII

Proposal for warning

In the event of an infringement of the provisions of the GDPR, among the corrective powers available to the Spanish Agency for Data Protection, as the supervisory authority, Article 58.2 of said Regulation includes the following:

"2 Each supervisory authority shall have all of the following corrective powers:

(...)

b) issue a warning to any controller or processor when the processing operations have infringed the provisions of this Regulation;

(...)

Article 64.3 of the LOPDGDD establishes that the AEPD, after hearing the controller or processor, may issue a warning.

In this case, given the nature of the facts and circumstances outlined in the preceding Legal Grounds, it is deemed appropriate to issue a warning to A.A.A. for the infringement of the aforementioned article. Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established,

the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ISSUE A WARNING to A.A.A., with NIF 51497601A, for an infringement of Article 6.1 of the GDPR, classified under Article 83.5.a) of the GDPR.

SECOND: TO NOTIFY this resolution to A.A.A.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the final

resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal.

If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation evidencing the effective filing of the administrative contentious appeal. If the Agency does not become aware of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, the provisional suspension would be considered terminated.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

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